

ADMINISTRATIVE TRIBUNALS

TRIBUNALISATION: SPECIALIST JUSTICE UNDER – ARTICLES 323A AND 323B – CAT AND SAT INSTITUTIONAL – APPLICATION, PROCEDURE, POWERS AND – L. CHANDRA KUMAR (1997) – TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

STAGE 00 TRIBUNALISATION: SPECIALIST JUSTICE UNDER CONSTITUTIONAL SUPERVISION

SPECIALIST JUSTICE UNDER CONSTITUTIONAL SUPERVISION ROOT QUESTION CAN SPECIALIST ADJUDICATION IMPROVE ACCESS AND SPEED WITHOUT CREATING RATIONALE EXPERTISE FLEXIBLE PROCEDURE HIGH-VOLUME DISPOSAL GEOGRAPHICAL ACCESS LOWER COST.

ROOT QUESTION

Can specialist adjudication improve access and speed without creating executive-controlled courts?

→ RATIONALE expertise

→ flexible procedure

CONSTITUTIONAL BASIS / ARTICLE
• ROOT QUESTION
• Can specialist adjudication improve access and speed without creating executive-controlled courts?
• RATIONALE expertise
• flexible procedure

POWER / PROCEDURE
• high-volume disposal
• geographical access
• lower cost.
• CONSTITUTIONAL SOURCE

CHECK / LIMIT
• 42nd Amendment 1976 → Part XIVA → Articles 323A and 323B.
• STATUTORY SOURCE
• Administrative Tribunals Act 1985 → CAT and enabled SAT arrangements.
• NON-NEGOTIABLE FLOOR judicial independence + natural justice + reasoned order

FEDERAL / RIGHTS IMPACT
• High Court/Supreme Court constitutional review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 323A confines service tribunals to parliamentary creation, while Article 323B permits Parliament or State legislatures to establish tribunals for specified subjects within competence.

STAGE 01 ARTICLES 323A AND 323B COMPARED

ARTICLES 323A AND 323B COMPARED ARTICLE 323A PUBLIC-SERVICE RECRUITMENT AND SERVICE CONDITIONS. ADMINISTRATIVE-TRIBUNAL DESIGN. ARTICLE 323B LISTED SUBJECTS TAX, LABOUR, LAND REFORM, ELECTIONS AND OTHERS IN TEXT. APPROPRIATE LEGISLATURE WITHIN COMPETENCE.

SUBJECT-SPECIFIC TRIBUNAL/HIERARCHY. COMMON HISTORY TEXT ALLOWED COURT EXCLUSION.

CONSTITUTIONAL BASIS / ARTICLE
ARTICLE 323A public-service recruitment and service conditions.
law-maker: Parliament.
administrative-tribunal design.

POWER / PROCEDURE
ARTICLE 323B listed subjects: tax, labour, land reform, elections and others in text.
law-maker: appropriate legislature within competence.
subject-specific tribunal/hierarchy.

CHECK / LIMIT
COMMON HISTORY text allowed court exclusion.
CURRENT LAW
L Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

FEDERAL / RIGHTS IMPACT
TRAP enabling Article 1= automatic creation of a tribunal.

CONSTITUTIONAL BASIS / ARTICLE
• ARTICLE 323A public-service recruitment and service conditions.
• law-maker: Parliament.
• administrative-tribunal design.

POWER / PROCEDURE
• ARTICLE 323B listed subjects: tax, labour, land reform, elections and others in text.
• law-maker: appropriate legislature within competence.
• subject-specific tribunal/hierarchy.

CHECK / LIMIT
• COMMON HISTORY text allowed court exclusion.
• CURRENT LAW
• L Chandra Kumar (1997): Articles 226/227 and 32 judicial review is basic structure.

FEDERAL / RIGHTS IMPACT
• TRAP enabling Article 1= automatic creation of a tribunal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 323A and 323B enable tribunal legislation but do not themselves create the CAT or every subject-specific tribunal.

STAGE 02 CAT AND SAT INSTITUTIONAL ARCHITECTURE

CAT AND SAT INSTITUTIONAL ARCHITECTURE PRINCIPAL BENCH + NOTIFIED BENCHES CHAIRPERSON + JUDICIAL MEMBERS + ADMINISTRATIVE MEMBERS UNDER CURRENT JURISDICTION COVERED UNION RECRUITMENT/SERVICE MATTERS AND NOTIFIED BODIES.

STATE SERVICE TRIBUNAL MAY EXIST THROUGH STATUTORY ARRANGEMENT STATES VARY AND SOME SATS HAVE BEEN ABOLISHED OR EXCLUSIONS FOLLOW EXACT ADMINISTRATIVE TRIBUNALS ACT TEXT AND NOTIFICATIONS NOT EVERY PUBLIC EMPLOYEE OR CONSTITUTIONAL OFFICE ENTERS CAT.

Principal Bench + notified benches

Chairperson + Judicial Members + Administrative Members under current law.

→ JURISDICTION covered Union recruitment/service matters and notified bodies.

→ State service tribunal may exist through statutory arrangement

CONSTITUTIONAL BASIS / ARTICLE
• Principal Bench + notified benches
• Chairperson + Judicial Members + Administrative Members under current law.

POWER / PROCEDURE
• JURISDICTION covered Union recruitment/service matters and notified bodies.
• State service tribunal may exist through statutory arrangement

CHECK / LIMIT
• States vary and some SATs have been abolished or not constituted.
• EXCLUSIONS follow exact Administrative Tribunals Act text and notifications

FEDERAL / RIGHTS IMPACT
• not every public employee or constitutional office enters CAT.
• CONTROL appointments, tenure and service conditions must be stated with the 25 August 2026 caveat.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Because government is a major tribunal litigant, executive control over appointments, tenure and finance can compromise the independence of the forum judging it.

STAGE 03 APPLICATION, PROCEDURE, POWERS AND CONTEMPT

APPLICATION, PROCEDURE, POWERS AND CONTEMPT PROCESS JURISDICTION CHECK ORIGINAL APPLICATION INTERIM ISSUE REASONED FINAL ORDER. PROCEDURE NATURAL JUSTICE FLEXIBLE PROCEDURE NOT RIGIDLY BOUND BY CPC.

PROCESS jurisdiction check – Original Application – notice/reply/record

→ Interim issue – hearing – reasoned final order.

→ PROCEDURE natural justice

→ flexible procedure

→ not rigidly bound by CPC.

CONSTITUTIONAL BASIS / ARTICLE
• PROCESS jurisdiction check → Original Application – notice/reply/record
• Interim issue → hearing → reasoned final order.
• PROCEDURE natural justice

POWER / PROCEDURE
• flexible procedure
• not rigidly bound by CPC.
• POWERS summons

CHECK / LIMIT
• review/other statutory powers.
• CONTEMPT statutory power subject to governing law and constitutional review.
• LIMIT procedural flexibility is not freedom from evidence, fairness, reasons or limitation rules.

FEDERAL / RIGHTS IMPACT
• flexible procedure

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Tribunal Reforms Act 2021 created a common framework for covered tribunals, but later judgments invalidated important appointment and tenure provisions.

STAGE 04 L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN

L. CHANDRA KUMAR (1997) AND THE CORRECT REVIEW CHAIN ORIGINAL CONSTITUTIONAL DESIGN TRIBUNAL AS SUBSTITUTE FIRST-INSTANCE FORUM + L. CHANDRA KUMAR (1997) HIGH COURT ARTICLES 226/227 AND SUPREME COURT ARTICLE 32 EXCLUSION CLAUSES INVALID

TRIBUNALS MAY TEST VIRES OF SUBORDINATE LEGISLATION AND STATUTES OPERATIVE CHAIN TRIBUNAL ORDER TERRITORIAL HIGH COURT DIVISION BENCH

CONSTITUTIONAL BASIS / ARTICLE
• ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses.
• L Chandra Kumar (1997)

POWER / PROCEDURE
• High Court Articles 226/227 and Supreme Court Article 32 review are basic structure
• exclusion clauses invalid

CHECK / LIMIT
• tribunals may test vires of subordinate legislation and statutes except parent legislation limits.
• OPERATIVE CHAIN tribunal order – territorial High Court Division Bench – Supreme Court constitutional route.

FEDERAL / RIGHTS IMPACT
• TRAP routine direct appeal from CAT to Supreme Court is not the ordinary substitute for High Court review.
• ORIGINAL CONSTITUTIONAL DESIGN tribunal as substitute first-instance forum + exclusion clauses.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: L Chandra Kumar (1997) preserves High Court review over tribunal decisions, but a longer appellate chain makes first-instance quality essential to efficiency.

STAGE 05 TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE DECISIONS

TRIBUNAL-INDEPENDENCE DOCTRINE ACROSS FIVE DECISIONS UNION OF INDIA V. R. GANDHI (2010) TRANSFERRED JUDICIAL MADRAS BAR ASSOCIATION NTT (2014) NATIONAL TAX TRIBUNAL DESIGN INVALIDATED; CORE JUDICIAL FUNCTIONS CANNOT MADRAS BAR ASSOCIATION IV (2020)

TRIBUNAL RULES SCRUTINISED; SELECTION AND TENURE SAFEGUARDS REINFORCED. MADRAS BAR ASSOCIATION V (2021) SHORT TENURE, AGE AND ROGER MATTHEW V. SOUTH INDIAN BANK (2019)

Union of India v. R. Gandhi (2010) transferred judicial work requires equivalent independence, qualifications and

→ Madras Bar Association NTT (2014)

→ National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.

→ Madras Bar Association IV (2020)

→ Tribunal Rules scrutinised; selection and tenure safeguards reinforced.

CONSTITUTIONAL BASIS / ARTICLE
• Union of India v. R. Gandhi (2010) transferred judicial work requires equivalent independence, qualifications and safeguards.
• Madras Bar Association NTT (2014)
• National Tax Tribunal design invalidated; core judicial functions cannot be executive-dominated.

POWER / PROCEDURE
• Madras Bar Association IV (2020)
• Tribunal Rules scrutinised; selection and tenure safeguards reinforced.
• Madras Bar Association V (2021) short tenure, age and executive override defects invalidated in the 2021 ordinance/Act line.

CHECK / LIMIT
• Roger Mathew v. South Indian Bank (2019)
• Finance Act/rules route and tribunal independence examined.
• access becomes geographically harder.
• Madras Bar Association tribunal reforms (2025) reported 2025 INSC 1330 continues the constitutional control and directs institutional reform.

FEDERAL / RIGHTS IMPACT
• LIMIT service-condition detail remains date-sensitive; doctrine is stable, implementation is not.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal tenure, age, vacancy and pecuniary limits remain amendment- and judgment-sensitive, making undated numerical claims unreliable.

STAGE 06 RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES

RATIONALISATION, ABOLITION AND ACCESS-TO-JUSTICE CONSEQUENCES 2021 RATIONALISATION ABOLISH SPECIFIED APPELLATE BODIES TRANSFER FUNCTIONS TO COURTS/OTHER FORUMS COMMON SERVICE FRAMEWORK. POSSIBLE GAIN LESS FRAGMENTATION FEWER DUPLICATIVE BODIES

CLEARER APPEAL PATH. POSSIBLE COST SPECIALISED EXPERTISE LOST

2021 RATIONALISATION abolish specified appellate bodies – transfer functions to courts/other forums

→ common service framework.

→ POSSIBLE GAIN less fragmentation

→ fewer duplicative bodies

→ clearer appeal path.

CONSTITUTIONAL BASIS / ARTICLE
• 2021 RATIONALISATION abolish specified appellate bodies – transfer functions to courts/other forums
• common service framework.
• POSSIBLE GAIN less fragmentation

POWER / PROCEDURE
• fewer duplicative bodies
• clearer appeal path.
• POSSIBLE COST specialised expertise lost

CHECK / LIMIT
• burden shifted to High Courts vacancies and transition delay
• access becomes geographically harder.
• SAT VARIATION abolition/merger differs by State and statute; no uniform live SAT map should be invented.

FEDERAL / RIGHTS IMPACT
• TEST pendency outcome + bench capacity + independence + user cost + transitional clarity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal analysis must separate specialised first-instance adjudication from constitutional supervision, testing efficiency gains against independence, access and judicial-review safeguards.

STAGE 07 CAT, COURTS, COMMISSIONS AND ADR DISTINGUISHED

CAT, COURTS, COMMISSIONS AND ADR DISTINGUISHED CAT STATUTORY SERVICE ADJUDICATION BINDING REASONED ORDER HIGH COURT REVIEW. HIGH COURT CONSTITUTIONAL COURT WRIT/SUPERVISORY JURISDICTION BROAD PUBLIC-LAW CONTROL.

COMMISSION INVESTIGATION/ADVICE/REPORT UNLESS STATUTE GRANTS ADJUDICATORY POWER.

CONSTITUTIONAL BASIS / ARTICLE
CAT statutory service adjudication – binding reasoned order – High Court review.
HIGH COURT constitutional court – writ/supervisory jurisdiction – broad public-law control.

POWER / PROCEDURE
COMMISSION investigation/advice/report unless statute grants adjudicatory power.
LOK ADALAT statutory settlement/conciliation – award based on compromise.

CHECK / LIMIT
ARBITRATION consensual private adjudication – limited statutory challenge.
DEPARTMENTAL APPEAL administrative reconsideration – not independent judicial adjudication.

FEDERAL / RIGHTS IMPACT
TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.
CAT statutory service adjudication – binding reasoned order – High Court review.

CONSTITUTIONAL BASIS / ARTICLE
• CAT statutory service adjudication – binding reasoned order – High Court review.
• HIGH COURT constitutional court – writ/supervisory jurisdiction – broad public-law control.

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• ARBITRATION consensual private adjudication – limited statutory challenge.
• DEPARTMENTAL APPEAL administrative reconsideration – not independent judicial adjudication.

FEDERAL / RIGHTS IMPACT
• TRAP specialised does not automatically mean tribunal; binding does not automatically mean court.
• CAT statutory service adjudication – binding reasoned order – High Court review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The promise of tribunals – expertise, speed and access – is delivered only when their independence is secured; the recurring constitutional litigation since 2010 shows that appointment and tenure design, not jurisdiction, is the real battleground.

STAGE 08 UPSC SYNTHESIS AND REFORM ARCHITECTURE

UPSC SYNTHESIS AND REFORM ARCHITECTURE PRELIMS FIREWALL 323A SERVICE 323B LISTED SUBJECTS CONSTITUTIONAL COURT ARBITRARY FIRST INSTANCE FINAL CONSTITUTIONAL WORD PENDENCY CURE.

PRELIMS FIREWALL

→ 323A service != 323B listed subjects

→ enabling != creating

→ CAT != constitutional court

→ flexible != arbitrary first instance != final constitutional word

CONSTITUTIONAL BASIS / ARTICLE
• PRELIMS FIREWALL
• 323A service != 323B listed subjects
• enabling != creating
• CAT != constitutional court

POWER / PROCEDURE
• flexible != arbitrary first instance != final constitutional word
• rationalisation != pendency cure.
• MAINS SPINE rationale – constitutional/statutory source – structure/jurisdiction
• procedure/powers – L Chandra Kumar (1997) chain

CHECK / LIMIT
• independence cases – rationalisation/access – reform.
• REFORM independent appointments body
• secure adequate tenure
• transparent vacancies administrative autonomy

FEDERAL / RIGHTS IMPACT
• national data/standards
• regional benches coherent appeals
• periodic performance review without decisional interference.
• VERDICT tribunals are justified only as independent, accessible specialist courts under constitutional supervision.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal legitimacy depends on specialised adjudication, independent appointments, adequate capacity and preserved constitutional review rather than formal creation alone.

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT S.P. SAMPATH KUMAR INITIALLY ACCEPTED TRIBUNAL SUBSTITUTION IF THE L. CHANDRA KUMAR (1997) HELD THAT EXCLUSION OF HIGH TRIBUNALS MAY DECIDE CONSTITUTIONAL QUESTIONS IN THE FIRST INSTANCE

THIS PROTECTS CONSTITUTIONAL SUPERVISION BUT ADDS ANOTHER TIER: SPEED THE ACT RATIONALISED THE TRIBUNAL LANDSCAPE BY ABOLISHING SPECIFIED IT ESTABLISHED A COMMON SERVICE-CONDITION FRAMEWORK FOR COVERED TRIBUNAL THE SUPREME COURT'S MADRAS BAR ASSOCIATION LINE INSISTS THAT

OPTIONAL DOCTRINE / CASE

- S.P. Sampath Kumar initially accepted tribunal substitution if the alternative
- L Chandra Kumar (1997) held that exclusion of High Court/Supreme Court judicial review
- Tribunals may decide constitutional questions in the first instance, but their
- CAUTION: This protects constitutional supervision but adds another tier: speed therefore

ADVANCED LIMIT

- The Act rationalised the tribunal landscape by abolishing specified appellate
- It established a common service-condition framework for covered tribunal
- The Supreme Court's Madras Bar Association line insists that tribunal
- On 19 Nov 2025, the Supreme Court in 2025 INSC 1330 struck down the

COMPARATIVE NUANCE

- On 9 Mar 2026, the Court made a separate continuity arrangement extending
- 2025 GS-II Q2 (10 marks, 150 words): "Comment on the need of administrative
- Thesis: Tribunals remain justified by specialisation, accessibility and potential
- Structure: need - constitutional limits - 2021 rationalisation - gains and

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.